

Fugitive Economic Offenders (Forms, Search and Seizure and the Manner of Forwarding the Reasons and Material to the Special Court) Rules, 2018

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Fugitive Economic Offenders (Forms, Search and Seizure and the Manner of Forwarding the Reasons and Material to the Special Court) Rules, 2018

UNION OF INDIA

India

Fugitive Economic Offenders (Forms, Search and Seizure and the Manner of Forwarding the Reasons and Material to the Special Court) Rules, 2018

Rule

FUGITIVE-ECONOMIC-OFFENDERS-FORMS-SEARCH-AND-SEIZURE-AND-THE-MANNER-OF-FORWARDING-THE-REASONS-AND-MATERIAL-TO-THE-SPECIAL-COURT-RULES-2018 of 2018

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Fugitive Economic Offenders (Forms, Search and Seizure and the Manner of Forwarding the Reasons and Material to the Special Court) Rules, 2018

Published vide Notification No. G.S.R. 396(E), dated 24.4.2018

G.S.R. 396(E). - In exercise of the powers conferred by clause (d) of sub-section (2) of section 23 of the Fugitive Economic Offenders Ordinance, 2018 (1 of 2018), the Central Government hereby makes the following rules, namely: -

1.

Short title and commencement.

(1)

These rules may be called the Fugitive Economic Offenders (Forms, Search and Seizure and the Manner of Forwarding the Reasons and Material to the Special Court) Rules, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

(a)

"authorised officer" means an officers not below the rank of a Deputy Director authorised by Director for the purpose of these rules;

(b)

"Director" means the Director appointed under clause (e) of sub-section (1) of section 2 of the Ordinance;

(c)

"Form" means forms appended to these rules;

(d)

"material means the material in possession of Director or the authorised officer, after search or seizure under subsection (1) of section 8 the Ordinance;

(e)

"Ordinance" means the Fugitive Economic Offenders Ordinance, 2018 (1 of 2018);

(f)

"place" means a place, related to the fugitive economic offender;

(g)

"records" include the records maintained in the form of books or stored in a computer or tapes or discs or in any other electronic form or transcribed information;

(h)

"Schedule" means the Schedule to the Ordinance;

(i)

"section" means a section of the Ordinance;

(2)

All other words and expressions used and not defined in these rules but defined in the Ordinance shall have the meaning respectively assigned to them in the Ordinance.

3.

Procedure relating to search.

(1)

The Director or the authorised officer shall be empowered to -

(a)

enter and search any building, place, vessel, vehicle or aircraft where he has reason to suspect that such records or proceeds of crime are kept;

(b)

break open the lock of any door, box, locker, safe, almirah or other receptacle for exercising the powers conferred by clause (a) of sub-section (1) of Section 8 where the keys thereof are not available;

(c)

seize any record or property found as a result of such search;

(d)

place marks of identification on such record or make or cause to be made extracts or copies therefrom;

(e)

make a note or an inventory of such record or property;

(f)

examine on oath any person, who is found to be in possession or control of any record or property, in respect of all matters relevant for the purposes of any investigation under this Ordinance:

Provided that no search shall be conducted unless a report has been submitted by an officer authorised to investigate to an officer not below the rank of Additional Secretary to the Government of India or equivalent being head of the office or Ministry or Department, as the case may be, or any other officer who may be authorised by the Central Government, for this purpose.

(2)

Before making a search, the Director or the authorised officer, shall -

(a)

where a building or place is to be searched, call upon two or more respectable persons of that locality in which the building or place to be searched is situated; and

(b)

where a vessel, vehicle or aircraft is to be searched, call upon any two or more respectable persons, to attend and witness the search and may issue an order in writing to them or any of them so to do.

(3)

Any person in charge of, or, in any building, place, vessel, vehicle or aircraft shall, on production of the authorisation, allow the Director or the authorised officer free ingress thereto and afford all reasonable facilities for search therein.

(4)

If ingress into such building or place cannot be obtained, it shall be lawful for Director or the authorised officer executing the authorisation, with such assistance of police officers or of such other officers, as may be required, to enter such building or place and search therein and in order to effect an entrance into such building or place, to break open any lock of any door or window of any building or place, whether that of the person to be searched or of any other person, if after production of authorisation and demand of admittance duly made, he cannot otherwise obtain admittance:

Provided that, if any such building or place is an apartment in actual occupancy of a woman, who according to custom does not appear in public, Director or the authorised officer shall before entering such apartment, give notice to such woman that she is at liberty to withdraw and shall afford her every reasonable facility for withdrawing and may then break open the apartment and enter it.

(5)

If ingress into any vessel, vehicle or aircraft authorised to be searched cannot be obtained because such vessel, vehicle or aircraft is moving or for any other reason, it shall be lawful for Director or the authorised officer executing the authorisation, with such assistance as may be required of police officers and such officers, to stop any such vessel or vehicle or in the case of an aircraft, compel it to stop or land, and search any part of the vessel, vehicle or aircraft, and in order to effect an entrance into such vessel, vehicle or aircraft to break open any door or window of any such vessel, vehicle or aircraft, whether that of the person to be searched or of any other person, if after production of the authorisation and demand of admittance duly made, he cannot otherwise obtain admittance:

Provided that if any such vessel, vehicle or aircraft is occupied by a woman, who according to custom does not appear in public, the Director or the authorised officer shall, before entering such vessel, vehicle or aircraft, give notice to such woman that she is at liberty to withdraw and shall afford her every reasonable facility for withdrawing and may then break open the door of any vessel, vehicle or aircraft and enter it.

(6)

The Director or the authorised officer may require any person who, is the owner, or has the immediate possession, or control, of any box, locker, safe, almirah or any other receptacle situated in such building, place, vessel, vehicle or aircraft, to open the same and allow access to inspect or examine its contents, and, where the keys thereof are not available or where such person fails to comply with any such requirement, may break open the lock of such box, locker, safe, almirah or other receptacle which Director or the authorised officer may deem necessary for carrying out all or any of the purposes specified by Director in this behalf.

(7)

The occupant of the building, place, vessel, vehicle or aircraft searched, including the person in charge of such vessel,

vehicle or aircraft, or some person on his behalf, shall be permitted to attend during the search.

(8)

The Director or the authorised officer shall, immediately after search and seizure forward a copy of the reasons so recorded along with material in his possession, referred to in that sub-section, to the Special Court in a sealed envelope.

4.

Procedure relating to seizure.

(1)

The Director or any other officer authorised by him, as the case may be, may seize any record or property found as a result of search of any building, place, vessel or vehicle or aircraft.

(2)

Where it is not practicable to seize any record or property, the Director or the authorised officer, as the case may be, may pass an order that the property shall not be transferred or otherwise dealt with, except with the prior permission of the Director or the authorised officer making such order, and a copy of such order shall be served on the person concerned.

(3)

The Director or the authorised officer shall prepare a seizure memo (inventory of items) in Form I appended to these rules which shall be delivered to the occupant of the building, place, vessel, vehicle or aircraft searched, including the person in charge of such vessel, vehicle or aircraft, or some person on his behalf and the Director or the authorised officer shall also forward a copy of the inventory so prepared to the Director and the Special Court.

(4)

The Director or the authorised officer shall place or cause to be placed the records of properties including bullion, jewellery and other valuable articles and things seized during the search in a package which shall contain the details of the bullion, jewellery and other valuable article and things placed therein, such packages shall bear an identification mark and the seal of the Director or the authorised officer, and the occupant of such building, place, vehicle or aircraft, including the person in charge of such vessel, vehicle or aircraft searched or any other person on his behalf shall also be permitted to place his seal on packages.

5.

Retention of property or records.

(1)

Where any property or records have been seized under clause (c) of subsection (1) of section 8 and the Director or the officer authorised by him in this behalf has, on the basis of material in his possession, reason to believe (the reason for such belief to be recorded by him in writing) that such property or records are required to be retained for the purposes of declaration of fugitive economic offender under section 12, such property or records may, if seized, be retained for a period not exceeding thirty days from the day on which such property or records were seized or such extended period as may be allowed by the Special Court on the request of the officer authorised.

(2)

The Director or the officer authorised by him shall, immediately after he has retained the property or records for purposes of declaration of fugitive economic offender under sub-rule (1), forward the inventory of items in Form I to the Special Court, in a sealed envelope.

(3)

On the expiry of the period specified in sub-rule (1), the property or records shall be returned to the person from whom such property or records were seized unless the Special Court permits retention of such property or records beyond the said period.

6.

Code of Criminal Procedure, 1973 to apply.

- The provisions of the Code of Criminal Procedure, 1973 (2 of 1974) shall apply, in so far as they are not inconsistent with the provisions of the Ordinance relating to search and seizure.

7.

Manner of forwarding an inventory under rule 5.

(1)

The Director or the authorised officer, as the case may be, shall prepare an index of a copy of the reasons recorded

along with the items in his possession and sign each page of such index while forwarding a copy of the index to the Special Court in a sealed envelope indicating a reference number and date of despatch.

(2)

The Director or the authorised officer shall maintain registers and other records such as acknowledgement slip register, dak register for the purposes of this rule and shall ensure that necessary entries are made in the register immediately as soon as a copy of the reasons along with the material are forwarded to the Special Court.

Form I

[See sub-rule (3) of rule 4 and sub-rule (2) of rule 5]

Seizure Memo

(Inventory of Items)

Dated From [time] to [time]

Panch Witnesses:

1. [name with complete address]

2. [name with complete address]

We, the above named panchas having been called upon by Shri [name, designation and complete address of Officer] have presented ourselves at [complete address of the premises]. Here we were shown an authorisation dated issued by Shri [name, designation and complete address of the Director] under sub-section (1) of section 8 of the Fugitive Economic Offenders Ordinance, 2018 (1 of 2018) authorising Shri [name, designation and complete address of the officer authorized by the Director] to conduct search or seizure of the above mentioned premises. We as well as Shri [name of the occupier of the premises] put our dated signatures on the authorisation in token of having seen the same. Before the actual start of search and after the conclusion of search by Shri [name, designation and complete address of the Director or the authorised officer] and the accompanying officers viz. Sarvashri/Shri/Shrimati offered their personal search which was declined or taken by Sarvashri / Shri/ Shrimati [the occupier of the premises] on both the occasions in our presence. The search started at hours on and concluded at hours on As a result of search [specify proceeds of crime or records or benami property or other property] were checked and verified and inventory prepared or recovered and seized or prohibited from transfer as per details given in the Schedule below. The search was conducted in a peaceful and orderly manner and no damage to the person or property was caused during the course of search.

[Signature] Director or the authorised officer [Seal]

Schedule

[Inventory of items recovered and seized]

Panch Witnesses:

1. [name, address and signature with date]

2. [name, address and signature with date]

.....

[signature of the person searched]

(Director or the authorised officer) Signature with Seal

(Received copy) [name, address and signature of the person searched]

Note. - Each page of the seizure memo is to be signed and dated by the Panch Witnesses, the person searched and the Director or the authorised officer.

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